

GDPR compliance report

Generated: 2026-05-02 11:36:11
Halted (P1): False
Overall score: 19%
Critical / Warning / Info: 24 / 17 / 1

Documents

- ../data/post_gdpr/data/GoPPC-150/88.xml

Chapter scores

Chapter	Score
Ch.2 – Principles	37%
Ch.3 – Rights of data subjects	8%
Ch.4 – Controller & processor	18%
Ch.5 – Transfers to third countries	25%
Ch.8 – Remedies, liability & penalties	0%
Ch.9 – Specific processing situations	0%

Top urgent gaps

- Art. 5 (Principles relating to processing): The policy does not explicitly state that personal data will be processed lawfully, fairly, and transparently.
- Art. 6 (Lawfulness of processing): The policy does not explicitly state the lawful basis for processing all categories of personal data collected. While some uses might fall under legitimate interests or contract performance, these are not clearly articulated for each processing activity.
- Art. 7 (Conditions for consent): The policy does not explicitly state how consent is obtained for processing that is not necessary for the performance of a contract, and whether such consent is freely given. Article 7(4) requires utmost account to be taken of whether performance of a contract is conditional on consent to processing not necessary for that contract.

Scorecard

Art.	Chapter	Title	P	Score	Severity	Status
5	Ch.2 – Principles	Principles relating to processing	p2	12	warning	partial
6	Ch.2 – Principles	Lawfulness of processing	p2	52	warning	partial
7	Ch.2 – Principles	Conditions for consent	p2	36	warning	partial
8	Ch.2 – Principles	Child's consent	p3	70	warning	present (unverified)
9	Ch.2 – Principles	Special category data	p2	44	warning	partial
10	Ch.2 – Principles	Criminal convictions data	p3	0	critical	missing
11	Ch.2 – Principles	Processing without identification	p2	44	warning	partial
12	Ch.3 – Rights of data su	Transparency & modalities	p2	28	warning	partial
13	Ch.3 – Rights of data su	Info collected from data subject	p2	10	warning	partial
14	Ch.3 – Rights of data su	Info not obtained from data subject	p2	0	critical	fail
15	Ch.3 – Rights of data su	Right of access	p2	0	critical	fail
16	Ch.3 – Rights of data su	Right to rectification	p2	0	critical	fail
17	Ch.3 – Rights of data su	Right to erasure	p2	0	critical	fail
18	Ch.3 – Rights of data su	Right to restriction	p2	52	warning	partial
19	Ch.3 – Rights of data su	Notification on rectification/erasure	p3	0	critical	missing
20	Ch.3 – Rights of data su	Right to data portability	p2	0	critical	fail
21	Ch.3 – Rights of data su	Right to object	p2	0	critical	fail
22	Ch.3 – Rights of data su	Automated decision-making	p2	0	critical	fail
24	Ch.4 – Controller & proc	Responsibility of the controller	p2	44	warning	partial
25	Ch.4 – Controller & proc	Privacy by design and default	p3	0	critical	missing
26	Ch.4 – Controller & proc	Joint controllers	p3	70	warning	present (unverified)
27	Ch.4 – Controller & proc	Representatives (non-EU)	p3	0	critical	missing
28	Ch.4 – Controller & proc	Processor / DPA	p2	10	warning	partial
29	Ch.4 – Controller & proc	Processing under authority	p2	0	critical	fail
30	Ch.4 – Controller & proc	Records of processing (ROPA)	p2	0	critical	fail
32	Ch.4 – Controller & proc	Security of processing	p3	0	critical	missing
33	Ch.4 – Controller & proc	Breach notification to SA	p3	0	critical	missing
34	Ch.4 – Controller & proc	Breach communication to data subject	p3	0	critical	missing
35	Ch.4 – Controller & proc	DPIA	p3	0	critical	missing
37	Ch.4 – Controller & proc	DPO designation	p2	44	warning	partial
38	Ch.4 – Controller & proc	DPO position	p3	70	warning	present (unverified)
39	Ch.4 – Controller & proc	DPO tasks	p2	52	warning	partial
40	Ch.4 – Controller & proc	Codes of conduct	p3	0	critical	missing
42	Ch.4 – Controller & proc	Certification	p3	0	critical	missing
44	Ch.5 – Transfers to thir	General principle for transfers	p2	0	critical	fail
45	Ch.5 – Transfers to thir	Adequacy decision transfers	p2	100	info	pass
46	Ch.5 – Transfers to thir	Transfers with safeguards	p3	0	critical	missing
47	Ch.5 – Transfers to thir	Binding corporate rules	p3	0	critical	missing
77	Ch.8 – Remedies, liabili	Right to lodge a complaint	p2	0	critical	fail
87	Ch.9 – Specific process	National identification number	p4	—	warning	triggered (HIL)
88	Ch.9 – Specific process	Employment context	p2	0	critical	fail
89	Ch.9 – Specific process	Archiving/research/statistics	p4	—	warning	triggered (HIL)

Scope (Art.2/3) + pipeline summary (raw JSON)

```
{
  "scope": {
    "applies": "yes",
    "reasons": [
      "The company states it is a 'global company' and its policy applies to users in the Union, indicating potential territorial scope.",
      "The policy mentions 'State and Country of Residence' as information collected, which implies processing of personal data within the Union.",
      "The policy explicitly states personal information may be 'transferred to and stored in the United States', but this does not exempt it from GDPR if other conditions are met.",
      "The policy covers collection of personal data for 'patrons, creators, and all users', which likely includes automated processing of personal data.",
      "The company collects information such as 'name, payment information and benefits', 'Email Address', 'Username', 'State and Country of Residence', which are all personal data."
    ],
    "evidence": [
      "Patreon is a global company.",
      "This updated Privacy Policy applies to patrons, creators, and all users of our platform",
      "By using our platform, you agree that your personal information that you provide directly to us, or that we collect through your use of the platform, may be transferred to and stored in the United States and handled as described in this Policy.",
      "First and Last Name",
      "Email Address",
      "Username",
      "Password",
      "State and Country of Residence"
    ],
    "hil_required": false
  },
  "pipeline_summary": {
    "overall_score_pct": 28,
    "p2_score": 0.28,
    "p2_findings_total": 25,
    "p3_findings_total": 15,
    "p4_triggered_total": 2,
    "p4_articles_not_triggered": 4,
    "findings_total": 42,
    "hil_queue_total": 17
  },
  "computed_scoring": {
    "overall_score_pct": 19,
    "chapter_scores": {
      "Ch.2 - Principles": 37,
      "Ch.3 - Rights of data subjects": 8,
      "Ch.4 - Controller & processor": 18,
      "Ch.5 - Transfers to third countries": 25,
      "Ch.8 - Remedies, liability & penalties": 0,
      "Ch.9 - Specific processing situations": 0
    }
  },
  "severity_counts": {
    "critical": 24,
    "warning": 17,
    "info": 1
  }
}
```

Appendix — finding detail

Art. 5 — Principles relating to processing

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 12/100

Risk: medium

Gaps

- The policy does not explicitly state that personal data will be processed lawfully, fairly, and transparently.
- While the policy mentions collecting data for specified purposes (e.g., supporting creators, processing payouts, tax purposes), it doesn't explicitly state 'purpose limitation' as a guiding principle or detail how incompatible further processing is avoided.
- The policy outlines data minimization by stating data collected is 'limited to what is necessary,' but this is not explicitly linked to the data minimization principle.
- The policy mentions keeping data 'up to date' where necessary and the need to erase or rectify inaccurate data, but the principle of 'accuracy' is not explicitly stated.
- The policy touches upon storage limitation by stating data is stored 'for no longer than is necessary for the purposes for which they are processed,' but the principle of 'storage limitation' is not explicitly named.
- While 'integrity and confidentiality' is addressed through security measures for unauthorized or unlawful processing, accidental loss, destruction, or damage, the principle itself is not explicitly named in relation to Article 5(1)(f).

Evidence

- Article 5(1)(a) requires data to be processed lawfully, fairly, and transparently. Policy chunks do not explicitly state these principles.
- Article 5(1)(b) requires data to be collected for specified, explicit, and legitimate purposes and not further processed in a manner that is incompatible with those purposes. Policy chunks mention purposes but not the explicit principle of purpose limitation or handling incompatible processing.
- Article 5(1)(c) requires data to be adequate, relevant, and limited to what is necessary (data minimisation). Policy chunks state data is 'limited to what is necessary' but do not explicitly name the principle.
- Article 5(1)(d) requires data to be accurate and kept up to date, with steps to erase or rectify inaccurate data. Policy chunks mention keeping data up to date and rectifying inaccuracy, but not the explicit 'accuracy' principle.
- Article 5(1)(e) requires data to be kept in a form that permits identification for no longer than necessary (storage limitation). Policy chunks mention 'no longer than is necessary' but not the explicit 'storage limitation' principle.
- Article 5(1)(f) requires processing to ensure integrity and confidentiality. Policy chunks mention security measures but not the explicit principle.
- Article 5(2) requires accountability. The policy does not explicitly address accountability as a principle.

Notes

The policy touches upon most principles of Article 5 but fails to explicitly name them or dedicate specific sections to their articulation, which weakens the demonstration of compliance under the accountability principle.

```
{
  "article_number": 5,
  "article_title": "Principles relating to processing",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state that personal data will be processed lawfully, fairly, and transparently.",
    "While the policy mentions collecting data for specified purposes (e.g., supporting creators, processing payouts, tax purposes), it doesn't explicitly state 'purpose limitation' as a guiding principle or detail how incompatible further processing is avoided.",
    "The policy outlines data minimization by stating data collected is 'limited to what is necessary,' but this is not explicitly linked to the data minimization principle.",
    "The policy mentions keeping data 'up to date' where necessary and the need to erase or rectify inaccurate data, but the principle of 'accuracy' is not explicitly stated.",
```

```

    "The policy touches upon storage limitation by stating data is stored 'for no longer than
    is necessary for the purposes for which they are processed,' but the principle of 'storage
    limitation' is not explicitly named.",
    "While 'integrity and confidentiality' is addressed through security measures for
    unauthorized or unlawful processing, accidental loss, destruction, or damage, the principle
    itself is not explicitly named in relation to Article 5(1)(f).",
  ],
  "evidence": [
    "Article 5(1)(a) requires data to be processed lawfully, fairly, and transparently. Policy
    chunks do not explicitly state these principles.",
    "Article 5(1)(b) requires data to be collected for specified, explicit, and legitimate
    purposes and not further processed in a manner that is incompatible with those purposes. Policy
    chunks mention purposes but not the explicit principle of purpose limitation or handling
    incompatible processing.",
    "Article 5(1)(c) requires data to be adequate, relevant, and limited to what is necessary (
    data minimisation). Policy chunks state data is 'limited to what is necessary' but do not
    explicitly name the principle.",
    "Article 5(1)(d) requires data to be accurate and kept up to date, with steps to erase or
    rectify inaccurate data. Policy chunks mention keeping data up to date and rectifying
    inaccuracy, but not the explicit 'accuracy' principle.",
    "Article 5(1)(e) requires data to be kept in a form that permits identification for no
    longer than necessary (storage limitation). Policy chunks mention 'no longer than is necessary'
    but not the explicit 'storage limitation' principle.",
    "Article 5(1)(f) requires processing to ensure integrity and confidentiality. Policy chunks
    mention security measures but not the explicit principle.",
    "Article 5(2) requires accountability. The policy does not explicitly address
    accountability as a principle."
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy touches upon most principles of Article 5 but fails to explicitly name
  them or dedicate specific sections to their articulation, which weakens the demonstration of
  compliance under the accountability principle.",
  "article_material_used": "text"
}

```

Art. 6 — Lawfulness of processing

Priority: p2 **Chapter:** Ch.2 – Principles

Severity: warning **Status:** partial

Score: 52/100

Risk: medium

Gaps

- The policy does not explicitly state the lawful basis for processing all categories of personal data collected. While some uses might fall under legitimate interests or contract performance, these are not clearly articulated for each processing activity.

Evidence

- Article 6 of the GDPR requires a lawful basis for every processing activity.
- The policy describes various data collection points such as 'Social Security Number or Employer Identification Number', 'Foreign Tax Identification Number', 'Bank Account Information for Payouts', 'Automatically Collected Information', 'User Surveys', 'Event Information', 'Blogs', 'Cookies', and 'Social Media Features and Widgets'.
- The policy mentions processing information to 'verify your identity to comply with US federal, state, and international laws' which suggests compliance with a legal obligation (Art. 6(1)(c)).
- The policy states processing 'to allow you to sign in to your account' and 'allow you to support a creator's membership program on Patreon' which likely falls under the performance of a contract (Art. 6(1)(b)).
- Other processing activities like 'understand how you use the service', 'create better tools for creators', 'conduct research and development', 'prevent fraud and abuse', and 'market Patreon products and services' could potentially be based on legitimate interests (Art. 6(1)(f)), but this is not explicitly stated.
- Information shared with creators, such as 'your name and email address', 'any messages you send creators', and 'your physical address', requires a clear lawful basis for this disclosure.

Notes

While some processing activities have implied lawful bases, the policy lacks explicit statements for all processing activities, creating a risk of non-compliance with Article 6 of the GDPR. Specifically, the lawful basis for marketing and research/development activities is unclear. Furthermore, the sharing of data with creators needs a clearly defined lawful basis.

{

```

"article_number": 6,
"article_title": "Lawfulness of processing",
"chapter": "Ch.2 – Principles",
"priority": "p2",
"status": "partial",
"gaps": [
  "The policy does not explicitly state the lawful basis for processing all categories of
personal data collected. While some uses might fall under legitimate interests or contract
performance, these are not clearly articulated for each processing activity."
],
"evidence": [
  "Article 6 of the GDPR requires a lawful basis for every processing activity.",
  "The policy describes various data collection points such as 'Social Security Number or
Employer Identification Number', 'Foreign Tax Identification Number', 'Bank Account Information
for Payouts', 'Automatically Collected Information', 'User Surveys', 'Event Information',
'Blogs', 'Cookies', and 'Social Media Features and Widgets'.",
  "The policy mentions processing information to 'verify your identity to comply with US
federal, state, and international laws' which suggests compliance with a legal obligation (Art.
6(1)(c)).",
  "The policy states processing 'to allow you to sign in to your account' and 'allow you to
support a creator's membership program on Patreon' which likely falls under the performance of
a contract (Art. 6(1)(b)).",
  "Other processing activities like 'understand how you use the service', 'create better
tools for creators', 'conduct research and development', 'prevent fraud and abuse', and 'market
Patreon products and services' could potentially be based on legitimate interests (Art. 6(1)(
f)), but this is not explicitly stated.",
  "Information shared with creators, such as 'your name and email address', 'any messages you
send creators', and 'your physical address', requires a clear lawful basis for this disclosure."
],
"risk": "medium",
"needs_human_review": false,
"notes": "While some processing activities have implied lawful bases, the policy lacks
explicit statements for all processing activities, creating a risk of non-compliance with
Article 6 of the GDPR. Specifically, the lawful basis for marketing and research/development
activities is unclear. Furthermore, the sharing of data with creators needs a clearly defined
lawful basis.",
"article_material_used": "text"
}

```

Art. 7 — Conditions for consent

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 36/100

Risk: medium

Gaps

- The policy does not explicitly state how consent is obtained for processing that is not necessary for the performance of a contract, and whether such consent is freely given. Article 7(4) requires utmost account to be taken of whether performance of a contract is conditional on consent to processing not necessary for that contract.
- The policy mentions opting out of marketing communications but does not explicitly detail the process for withdrawing consent for other types of processing, or ensure that withdrawal is as easy as giving consent, as required by Article 7(3).
- While the policy mentions agreeing to terms of use for certain marketing activities (c25), it doesn't explicitly detail how consent is sought, verified as informed, specific, and unambiguous for all processing activities based on consent, as per Article 7(1).

Evidence

- c25: 'By agreeing to our terms of use, you expressly agree that Patreon may: provide you with information about your service, service enhancements, or new Patreon products, while you are on our web site or using our apps. send you messages regarding your existing service, or enhancements related to your existing service, when you are off our platform, via email, or via text, if you have signed up for a service or event notification that uses text messages. send you messages related to services we provide which are separate from your existing service via email, from which you may opt out. market Patreon to you and audiences similar to you based on your networks and common factors that others have with you, unless you opt out. send you marketing emails or texts if you don't have a Patreon account but have consented to receiving such messages, from which you may opt out.'

• c26: 'You may object to the use of your data for marketing purposes at any time, free of charge, when we collect your personal information and in every marketing communication. You may also object to the use of your data for marketing upon creation of your account or anytime thereafter, by opting out here. Opting out will stop marketing emails. Please allow up to 30 days for your opt-out request to be processed. If you have an account with Patreon, you will continue to receive service-related emails, and texts, if you have opted into receiving texts. You will also continue to receive service-related shipments of benefits to the designated delivery address.'

• c26: 'We will never sell your information to third parties for marketing purposes without your prior consent.'

Notes

The policy addresses consent for marketing activities, including opt-out mechanisms. However, it lacks clarity on the conditions under which consent is obtained for other processing activities, particularly concerning the 'freely given' aspect when contracts are involved, and the ease of withdrawal for all types of consent.

```
{
  "article_number": 7,
  "article_title": "Conditions for consent",
  "chapter": "Ch.2 - Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state how consent is obtained for processing that is not necessary for the performance of a contract, and whether such consent is freely given. Article 7(4) requires utmost account to be taken of whether performance of a contract is conditional on consent to processing not necessary for that contract.",
    "The policy mentions opting out of marketing communications but does not explicitly detail the process for withdrawing consent for other types of processing, or ensure that withdrawal is as easy as giving consent, as required by Article 7(3).",
    "While the policy mentions agreeing to terms of use for certain marketing activities (c25), it doesn't explicitly detail how consent is sought, verified as informed, specific, and unambiguous for all processing activities based on consent, as per Article 7(1).",
  ],
  "evidence": [
    "c25: 'By agreeing to our terms of use, you expressly agree that Patreon may: provide you with information about your service, service enhancements, or new Patreon products, while you are on our web site or using our apps. send you messages regarding your existing service, or enhancements related to your existing service, when you are off our platform, via email, or via text, if you have signed up for a service or event notification that uses text messages. send you messages related to services we provide which are separate from your existing service via email, from which you may opt out. market Patreon to you and audiences similar to you based on your networks and common factors that others have with you, unless you opt out. send you marketing emails or texts if you don't have a Patreon account but have consented to receiving such messages, from which you may opt out.'",
    "c26: 'You may object to the use of your data for marketing purposes at any time, free of charge, when we collect your personal information and in every marketing communication. You may also object to the use of your data for marketing upon creation of your account or anytime thereafter, by opting out here. Opting out will stop marketing emails. Please allow up to 30 days for your opt-out request to be processed. If you have an account with Patreon, you will continue to receive service-related emails, and texts, if you have opted into receiving texts. You will also continue to receive service-related shipments of benefits to the designated delivery address.'",
    "c26: 'We will never sell your information to third parties for marketing purposes without your prior consent.'",
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy addresses consent for marketing activities, including opt-out mechanisms. However, it lacks clarity on the conditions under which consent is obtained for other processing activities, particularly concerning the 'freely given' aspect when contracts are involved, and the ease of withdrawal for all types of consent.",
  "article_material_used": "text"
}
```

Art. 8 — Child's consent

Priority: p3 Chapter: Ch.2 – Principles

Severity: warning Status: present (unverified)

Score: 70/100

Notes

The policy explicitly states that Patreon is not directed at children under 13 and they may not create an account. This directly addresses the topic of child consent and age restrictions.

```
{
  "article_number": 8,
  "article_title": "Child's consent",
  "chapter": "Ch.2 - Principles",
```

```

    "priority": "p3",
    "policy_present": true,
    "implementation_unverified": true,
    "needs_human_review": true,
    "evidence": "Patreon is not directed at children under the age of 13, and children may not
create an account or otherwise use Patreon.",
    "notes": "The policy explicitly states that Patreon is not directed at children under 13 and
they may not create an account. This directly addresses the topic of child consent and age
restrictions.",
    "status": null,
    "gaps": [],
    "risk": null
}

```

Art. 9 — Special category data

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 44/100

Risk: high

Gaps

- The policy does not explicitly state that explicit consent or a derogation under Article 9(2) is required for the processing of special category data. While it collects sensitive demographic information such as gender, ethnicity, race, age, sexual orientation, earnings, and accessibility, it does not specify the legal basis for this processing beyond stating it's to 'better understand and serve our user base' and 'ensure we provide fair and equal access to our services'.
- The policy mentions collecting demographic information for events, including gender, ethnicity, race, age, sexual orientation, but does not clearly state the explicit consent or a specific derogation under Article 9(2) that permits this processing.

Evidence

- Section [c12 4361-4908] states: 'We may ask you demographic information, including information related to your gender, ethnicity, race, age, sexual orientation, earnings, and accessibility to better understand and serve our user base which you may elect to share or not. We collect such information to ensure we provide fair and equal access to our services, and to showcase creators to patrons for greater discoverability.'
- Section [c13 4908-5333] states: 'This information may include your name, email address, payment details, mobile phone number and QR code, demographic information, social media and other online accounts you maintain, details around the types of works you create, and survey or feedback responses.'

Notes

The policy collects sensitive data that falls under Article 9. While it mentions that the user 'may elect to share or not' for surveys, it doesn't explicitly confirm that 'explicit consent' is obtained or that a specific derogation under Article 9(2) is relied upon for the processing of this sensitive data. The stated purposes of 'better understand and serve our user base', 'ensure we provide fair and equal access to our services', and 'showcase creators to patrons for greater discoverability' do not automatically align with the strict requirements of Article 9.

```

{
  "article_number": 9,
  "article_title": "Special category data",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state that explicit consent or a derogation under Article 9(
2) is required for the processing of special category data. While it collects sensitive
demographic information such as gender, ethnicity, race, age, sexual orientation, earnings, and
accessibility, it does not specify the legal basis for this processing beyond stating it's to
'better understand and serve our user base' and 'ensure we provide fair and equal access to our
services'.",
    "The policy mentions collecting demographic information for events, including gender,
ethnicity, race, age, sexual orientation, but does not clearly state the explicit consent or a
specific derogation under Article 9(2) that permits this processing."
  ],
  "evidence": [
    "Section [c12 4361-4908] states: 'We may ask you demographic information, including
information related to your gender, ethnicity, race, age, sexual orientation, earnings, and
accessibility to better understand and serve our user base which you may elect to share or not.
We collect such information to ensure we provide fair and equal access to our services, and to
showcase creators to patrons for greater discoverability.'",

```



```

"Section [c13 4908-5333] states: 'This information may include your name, email address,
payment details, mobile phone number and QR code, demographic information, social media and
other online accounts you maintain, details around the types of works you create, and survey or
feedback responses.'"
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy collects sensitive data that falls under Article 9. While it mentions
that the user 'may elect to share or not' for surveys, it doesn't explicitly confirm that
'explicit consent' is obtained or that a specific derogation under Article 9(2) is relied upon
for the processing of this sensitive data. The stated purposes of 'better understand and serve
our user base', 'ensure we provide fair and equal access to our services', and 'showcase
creators to patrons for greater discoverability' do not automatically align with the strict
requirements of Article 9.",
"article_material_used": "text"
}

```

Art. 10 — Criminal convictions data

Priority: p3 **Chapter:** Ch.2 – Principles

Severity: critical **Status:** missing

Score: 0/100

Notes

The provided text contains definitions relevant to GDPR, such as 'personal data', 'processing', and 'controller'. However, it does not specifically address or mention the processing of data relating to criminal convictions or offenses, which is the subject of Article 10.

```

{
  "article_number": 10,
  "article_title": "Criminal convictions data",
  "chapter": "Ch.2 – Principles",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains definitions relevant to GDPR, such as 'personal data',
'processing', and 'controller'. However, it does not specifically address or mention the
processing of data relating to criminal convictions or offenses, which is the subject of
Article 10.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 11 — Processing without identification

Priority: p2 **Chapter:** Ch.2 – Principles

Severity: warning **Status:** partial

Score: 44/100

Risk: medium

Gaps

- The policy does not explicitly state whether the controller is obliged to inform the data subject if they are unable to identify them, as required by Article 11(2).
- There is no mention of how the controller demonstrates that they are not in a position to identify the data subject, as referenced in Article 11(2).

Evidence

- The provided policy chunks define 'personal data', 'processing', and 'pseudonymisation' which are relevant to understanding the context of Article 11.
- The policy chunks do not contain specific clauses addressing the conditions under which a controller is not obliged to maintain or acquire additional information to identify a data subject (Article 11(1)) or the procedures for informing data subjects when identification is not possible (Article 11(2)).

Notes

While the policy defines key terms that are relevant to Article 11, it lacks specific provisions that directly address the obligations and procedures outlined in this article regarding processing without identification and the rights of data subjects in such scenarios.

```

{

```

```

"article_number": 11,
"article_title": "Processing without identification",
"chapter": "Ch.2 – Principles",
"priority": "p2",
"status": "partial",
"gaps": [
  "The policy does not explicitly state whether the controller is obliged to inform the data subject if they are unable to identify them, as required by Article 11(2).",
  "There is no mention of how the controller demonstrates that they are not in a position to identify the data subject, as referenced in Article 11(2).",
],
"evidence": [
  "The provided policy chunks define 'personal data', 'processing', and 'pseudonymisation' which are relevant to understanding the context of Article 11.",
  "The policy chunks do not contain specific clauses addressing the conditions under which a controller is not obliged to maintain or acquire additional information to identify a data subject (Article 11(1)) or the procedures for informing data subjects when identification is not possible (Article 11(2)).",
],
"risk": "medium",
"needs_human_review": false,
"notes": "While the policy defines key terms that are relevant to Article 11, it lacks specific provisions that directly address the obligations and procedures outlined in this article regarding processing without identification and the rights of data subjects in such scenarios.",
"article_material_used": "text"
}

```

Art. 12 — Transparency & modalities

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: warning **Status:** partial

Score: 28/100

Risk: medium

Gaps

- The policy does not specify the timeframe for responding to data subject requests regarding exercising their rights under Articles 15-22, nor does it mention the possibility of extending this period or informing the data subject of such an extension. It also does not explicitly state that information and actions related to these rights will be provided free of charge unless requests are manifestly unfounded or excessive, nor does it mention the conditions under which a fee may be charged or a request refused.
- The policy does not detail the process for handling requests that are manifestly unfounded or excessive, including the possibility of charging a reasonable fee or refusing the request, nor does it mention the controller bearing the burden of proof for such claims.
- The policy does not mention the obligation to inform data subjects without delay, and at the latest within one month, of the reasons for not taking action on a request, nor the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy.
- The policy does not explicitly state that information should be provided in a concise, transparent, intelligible, and easily accessible form using clear and plain language, particularly for children. It also does not mention the provision of information orally when requested by the data subject, provided their identity is proven.

Evidence

- {policy_chunk_id: 'c0 0-491', 'paragraph': 'Welcome to Patreon!\nPatreon is a platform where patrons can support and engage with creators. This \xa0updated Privacy Policy applies to patrons, creators, and all users of our platform, and is part of our Terms of Use.\nPatreon is a global company. By using our platform, you agree that your personal information that you provide directly to us, or that we collect through your use of the platform, may be transferred to and stored in the United States and handled as described in this Policy.'}
- {policy_chunk_id: 'c1 491-783', 'paragraph': 'Information You Provide Through Your Account\nThis is information that you provide to us through text fields, such as your name, payment information and benefits. The information we collect differs depending on if you make an account, become a patron, or become a creator.\nFirst and Last Name'}
- {policy_chunk_id: 'c2 783-797', 'paragraph': 'Email Address'}
- {policy_chunk_id: 'c3 797-806', 'paragraph': 'Username'}
- {policy_chunk_id: 'c4 806-1418', 'paragraph': 'Password\nState and Country of Residence\nYou may also sign up using a Facebook or Google account. We will ask permission to access basic information from your

Facebook or Google account, such as your name, email, and profile picture. You can choose to stop sharing that information with us at any time by going to Facebook or Google to remove Patreon's access to that account and your ability to log in. You also have the option to add more information to your public profile, such as a location, social media links, and an about section, which we store along with any comments or messages you submit on Patreon.}

- { 'policy_chunk_id': 'c5 1418-2465', 'paragraph': 'Patrons\nA patron is someone who joins Patreon's membership platform to support a creator's membership content. As a patron you must provide your payment information to our payment processors. You can see the privacy policy for these payment processors on the PayPal, Stripe, and Checkout sites. At this time, Patreon does not receive your full card number. Payment processors provide us with a token that represents your account, your card's expiration date, card type and the last four digits of your card number. If you are required to provide your name and email address to the payment processor, then they also provide us with that information.\nWe collect and process information about the creators you support, the level at which you support them, what benefits you receive and how often you support them. As a patron, if you select a benefit tier with a physical benefit, then you will provide your shipping information, including phone number, so the creator or Patreon can ship you the benefit, or provide updates related to the shipment.' }

- { 'policy_chunk_id': 'c6 2465-3064', 'paragraph': 'Creators\nA creator is someone who creates and provides content for their patrons through Patreon's membership platform. To become a creator, you must create a page that describes what you are creating and any benefits you are offering. To receive payouts you have to create an account with one of our payment partners: PayPal, Stripe, or Payoneer. We may also require your bank account information to process payouts. You must also provide us with additional information for tax purposes. Depending on your location you may have to fill out a form with some combination of your:\nFirst and Last Name' }

- { 'policy_chunk_id': 'c7 3064-3152', 'paragraph': 'Address\nSocial Security Number or Employer Identification Number\nCountry of Citizenship' }

Notes

The policy provides information on data collection and use but lacks specific details on data subject rights management as per Article 12. Key elements such as response times, language, accessibility, provision of information free of charge, and handling of unfounded requests are not addressed.

```
{
  "article_number": 12,
  "article_title": "Transparency & modalities",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not specify the timeframe for responding to data subject requests regarding exercising their rights under Articles 15-22, nor does it mention the possibility of extending this period or informing the data subject of such an extension. It also does not explicitly state that information and actions related to these rights will be provided free of charge unless requests are manifestly unfounded or excessive, nor does it mention the conditions under which a fee may be charged or a request refused.",
    "The policy does not detail the process for handling requests that are manifestly unfounded or excessive, including the possibility of charging a reasonable fee or refusing the request, nor does it mention the controller bearing the burden of proof for such claims.",
    "The policy does not mention the obligation to inform data subjects without delay, and at the latest within one month, of the reasons for not taking action on a request, nor the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy.",
    "The policy does not explicitly state that information should be provided in a concise, transparent, intelligible, and easily accessible form using clear and plain language, particularly for children. It also does not mention the provision of information orally when requested by the data subject, provided their identity is proven."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c0 0-491",
      "paragraph": "Welcome to Patreon!\nPatreon is a platform where patrons can support and engage with creators. This updated Privacy Policy applies to patrons, creators, and all users of our platform, and is part of our Terms of Use.\nPatreon is a global company. By using our platform, you agree that your personal information that you provide directly to us, or that we collect through your use of the platform, may be transferred to and stored in the United States and handled as described in this Policy."
    },
    {
      "policy_chunk_id": "c1 491-783",
      "paragraph": "Information You Provide Through Your Account\nThis is information that you provide to us through text fields, such as your name, payment information and benefits. The
```

information we collect differs depending on if you make an account, become a patron, or become a creator.\nFirst and Last Name"

```
{
  {
    "policy_chunk_id": "c2 783-797",
    "paragraph": "Email Address"
  },
  {
    "policy_chunk_id": "c3 797-806",
    "paragraph": "Username"
  },
  {
    "policy_chunk_id": "c4 806-1418",
    "paragraph": "Password\nState and Country of Residence\nYou may also sign up using a
Facebook or Google account. We will ask permission to access basic information from your
Facebook or Google account, such as your name, email, and profile picture. You can choose to
stop sharing that information with us at any time by going to Facebook or Google to remove
Patreon's access to that account and your ability to log in.\nYou also have the option to add
more information to your public profile, such as a location, social media links, and an about
section, which we store along with any comments or messages you submit on Patreon."
  },
  {
    "policy_chunk_id": "c5 1418-2465",
    "paragraph": "Patrons\nA patron is someone who joins Patreon's membership platform to
support a creator's membership content. As a patron you must provide your payment information
to our payment processors. You can see the privacy policy for these payment processors on the
PayPal, Stripe, and Checkout sites. At this time, Patreon does not receive your full card
number. Payment processors provide us with a token that represents your account, your card's
expiration date, card type and the last four digits of your card number. If you are required to
provide your name and email address to the payment processor, then they also provide us with
that information.\nWe collect and process information about the creators you support, the level
at which you support them, what benefits you receive and how often you support them. As a
patron, if you select a benefit tier with a physical benefit, then you will provide your
shipping information, including phone number, so the creator or Patreon can ship you the
benefit, or provide updates related to t
... (truncated)
```

Art. 13 — Info collected from data subject

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: warning **Status:** partial

Score: 10/100

Risk: high

Gaps:

- The policy does not explicitly state the identity and contact details of the controller or their representative.
- The policy does not mention the contact details of the Data Protection Officer (DPO), if applicable.
- While purposes are implied (e.g., supporting creators, processing payments), they are not explicitly listed for all data types. The legal basis for processing is not clearly stated for any data collection.
- The policy does not mention legitimate interests pursued by the controller or third parties, which would be relevant if processing is based on Article 6(1)(f).
- Categories of recipients are not clearly defined beyond payment processors and third-party service providers for forums (Discourse, Discord). Information on intended data transfer to third countries or international organizations, and the safeguards in place, is missing.
- The policy does not specify the retention period for personal data or the criteria used to determine it.
- The policy does not provide a summary of the data subject's rights, such as the right to access, rectification, erasure, restriction of processing, objection, or data portability.
- The policy does not mention the right to withdraw consent, even though consent may be a legal basis for some processing (e.g., optional survey information).

Evidence:

- Policy mentions collecting name, email address, username, password, state/country of residence, payment information, creator support details, shipping information, bank account information, tax identification numbers, date of birth, phone number, usage information (device, OS, browser, IP, pages visited), forum comments, private messages, survey responses, event information, and blog comments.
- Policy states data may be transferred to and stored in the United States.
- Policy mentions using payment processors (PayPal, Stripe, Checkout) and third-party forum providers (Discourse, Discord).

- Policy mentions deriving location from IP address and self-disclosed country.
- Policy mentions collecting optional demographic information for user surveys (gender, ethnicity, race, age, sexual orientation, earnings, accessibility).
- Policy mentions collecting information for events, including name, email, payment details, phone number, QR code, demographic information, social media accounts, and survey feedback.
- Policy mentions collecting email, comments, and profile information from blog sites.
- Policy mentions using cookies for user analytics.

Notes

The policy provides a comprehensive list of data collected but fails to address most of the required information under GDPR Article 13. Key omissions include controller identity, DPO contact, explicit legal basis and purposes for all data processing, retention periods, detailed recipient information including international transfers, and a summary of data subject rights. The lack of this information significantly hinders transparency and the data subject's ability to understand and exercise their rights.

```
{
  "article_number": 13,
  "article_title": "Info collected from data subject",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state the identity and contact details of the controller or their representative.",
    "The policy does not mention the contact details of the Data Protection Officer (DPO), if applicable.",
    "While purposes are implied (e.g., supporting creators, processing payments), they are not explicitly listed for all data types. The legal basis for processing is not clearly stated for any data collection.",
    "The policy does not mention legitimate interests pursued by the controller or third parties, which would be relevant if processing is based on Article 6(1)(f).",
    "Categories of recipients are not clearly defined beyond payment processors and third-party service providers for forums (Discourse, Discord). Information on intended data transfer to third countries or international organizations, and the safeguards in place, is missing.",
    "The policy does not specify the retention period for personal data or the criteria used to determine it.",
    "The policy does not provide a summary of the data subject's rights, such as the right to access, rectification, erasure, restriction of processing, objection, or data portability.",
    "The policy does not mention the right to withdraw consent, even though consent may be a legal basis for some processing (e.g., optional survey information).",
    "The right to lodge a complaint with a supervisory authority is not mentioned.",
    "The policy does not clarify whether the provision of personal data is a statutory or contractual requirement, or a requirement necessary to enter into a contract, nor the consequences of failure to provide such data.",
    "Information about automated decision-making, including profiling, the logic involved, and its envisaged consequences, is not provided."
  ],
  "evidence": [
    "Policy mentions collecting name, email address, username, password, state/country of residence, payment information, creator support details, shipping information, bank account information, tax identification numbers, date of birth, phone number, usage information (device, OS, browser, IP, pages visited), forum comments, private messages, survey responses, event information, and blog comments.",
    "Policy states data may be transferred to and stored in the United States.",
    "Policy mentions using payment processors (PayPal, Stripe, Checkout) and third-party forum providers (Discourse, Discord).",
    "Policy mentions deriving location from IP address and self-disclosed country.",
    "Policy mentions collecting optional demographic information for user surveys (gender, ethnicity, race, age, sexual orientation, earnings, accessibility).",
    "Policy mentions collecting information for events, including name, email, payment details, phone number, QR code, demographic information, social media accounts, and survey feedback.",
    "Policy mentions collecting email, comments, and profile information from blog sites.",
    "Policy mentions using cookies for user analytics."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy provides a comprehensive list of data collected but fails to address most of the required information under GDPR Article 13. Key omissions include controller identity, DPO contact, explicit legal basis and purposes for all data processing, retention periods, detailed recipient information including international transfers, and a summary of data subject rights. The lack of this information significantly hinders transparency and the data subject's ability to understand and exercise their rights.",
  "article_material_used": "text"
}
```

Art. 14 — Info not obtained from data subject

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state the source of personal data when it is not obtained from the data subject, nor does it mention whether the data originated from publicly accessible sources, as required by Article 14(2)(f).
- The policy does not specify the existence of automated decision-making, including profiling, nor does it provide meaningful information about the logic involved and the envisaged consequences for the data subject, as required by Article 14(2)(g).
- While the policy mentions that data may be transferred to the US, it does not explicitly address the existence or absence of an adequacy decision or reference to appropriate safeguards for international transfers as required by Article 14(1)(f).
- The policy does not clearly state the timeframes within which data subjects will be provided with information when personal data has not been obtained directly from them, as required by Article 14(3).
- The policy does not address the potential for further processing of data for a purpose other than that for which it was originally obtained, and the information to be provided to the data subject prior to such processing, as required by Article 14(4).

Evidence

- {'policy_chunk_id': 'c0 0-491', 'snippet': 'Patreon is a global company. By using our platform, you agree that your personal information that you provide directly to us, or that we collect through your use of the platform, may be transferred to and stored in the United States and handled as described in this Policy.'}
- {'policy_chunk_id': 'c1 491-783', 'snippet': 'This is information that you provide to us through text fields, such as your name, payment information and benefits.'}
- {'policy_chunk_id': 'c4 806-1418', 'snippet': 'You may also sign up using a Facebook or Google account. We will ask permission to access basic information from your Facebook or Google account, such as your name, email, and profile picture. You can choose to stop sharing that information with us at any time by going to Facebook or Google to remove Patreon's access to that account and your ability to log in.'}
- {'policy_chunk_id': 'c5 1418-2465', 'snippet': 'A patron is someone who joins Patreon's membership platform to support a creator's membership content. This information may also be provided by third-party payment processors like PayPal, Stripe, and Checkout. At this time, Patreon does not receive your full card number. Payment processors provide us with a token that represents your account, your card's expiration date, card type and the last four digits of your card number. If you are required to provide your name and email address to the payment processor, then they also provide us with that information.'}

Notes

The policy primarily focuses on information obtained directly from the data subject. While it acknowledges data collection through third-party payment processors and social media logins, it fails to provide comprehensive information required by Article 14 for data not obtained from the data subject. Specifically, it lacks details on the source of data, automated decision-making, international transfer safeguards, and clear timelines for providing information under Article 14.

```
{
  "article_number": 14,
  "article_title": "Info not obtained from data subject",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state the source of personal data when it is not obtained from the data subject, nor does it mention whether the data originated from publicly accessible sources, as required by Article 14(2)(f).",
    "The policy does not specify the existence of automated decision-making, including profiling, nor does it provide meaningful information about the logic involved and the envisaged consequences for the data subject, as required by Article 14(2)(g).",
    "While the policy mentions that data may be transferred to the US, it does not explicitly address the existence or absence of an adequacy decision or reference to appropriate safeguards for international transfers as required by Article 14(1)(f).",
    "The policy does not clearly state the timeframes within which data subjects will be provided with information when personal data has not been obtained directly from them, as required by Article 14(3).",
    "The policy does not address the potential for further processing of data for a purpose other than that for which it was originally obtained, and the information to be provided to the
```

```

data subject prior to such processing, as required by Article 14(4)."
```

```

  ],
  "evidence": [
    {
      "policy_chunk_id": "c0 0-491",
      "snippet": "Patreon is a global company. By using our platform, you agree that your
personal information that you provide directly to us, or that we collect through your use of
the platform, may be transferred to and stored in the United States and handled as described in
this Policy."
    },
    {
      "policy_chunk_id": "c1 491-783",
      "snippet": "This is information that you provide to us through text fields, such as your
name, payment information and benefits."
    },
    {
      "policy_chunk_id": "c4 806-1418",
      "snippet": "You may also sign up using a Facebook or Google account. We will ask
permission to access basic information from your Facebook or Google account, such as your name,
email, and profile picture. You can choose to stop sharing that information with us at any time
by going to Facebook or Google to remove Patreon's access to that account and your ability to
log in."
    },
    {
      "policy_chunk_id": "c5 1418-2465",
      "snippet": "A patron is someone who joins Patreon's membership platform to support a
creator's membership content. This information may also be provided by third-party payment
processors like PayPal, Stripe, and Checkout. At this time, Patreon does not receive your full
card number. Payment processors provide us with a token that represents your account, your
card's expiration date, card type and the last four digits of your card number. If you are
required to provide your name and email address to the payment processor, then they also
provide us with that information."
    }
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy primarily focuses on information obtained directly from the data subject.
While it acknowledges data collection through third-party payment processors and social media
logins, it fails to provide comprehensive information required by Article 14 for data not
obtained from the data subject. Specifically, it lacks details on the source of data, automated
decision-making, international transfer safeguards, and clear timelines for providing
information under Article 14.",
  "article_material_used": "text"
}

```

Art. 15 — Right of access

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not describe the process for making a Subject Access Request (SAR).
- The policy does not mention the timeline for responding to SARs (typically 1 month as per GDPR Article 15).
- The policy does not outline the procedures for verifying the identity of the data subject making the SAR.
- The policy does not specify the exact types of information that will be provided to the data subject upon a SAR, beyond general categories of data collected.
- While the policy lists the types of personal data collected, it does not explicitly confirm that a data subject can request and receive a copy of this data, as mandated by Article 15(3).

Evidence

- The policy details the types of personal data collected from users (c1, c2, c3, c4, c5, c6, c7, c8, c9, c10, c11, c12, c13).
- The policy states that Patreon is a global company and data may be transferred to the US (c0).

Notes

The policy extensively lists the data collected but fails to address the core requirements of Article 15 regarding the process, timeline, verification, and specific content of a Subject Access Request (SAR). This lack of detail leaves a significant gap in user rights fulfillment.

```

{
  "article_number": 15,
  "article_title": "Right of access",

```

```

"chapter": "Ch.3 – Rights of data subjects",
"priority": "p2",
"status": "fail",
"gaps": [
  "The policy does not describe the process for making a Subject Access Request (SAR).",
  "The policy does not mention the timeline for responding to SARs (typically 1 month as per GDPR Article 15).",
  "The policy does not outline the procedures for verifying the identity of the data subject making the SAR.",
  "The policy does not specify the exact types of information that will be provided to the data subject upon a SAR, beyond general categories of data collected.",
  "While the policy lists the types of personal data collected, it does not explicitly confirm that a data subject can request and receive a copy of this data, as mandated by Article 15(3).",
],
"evidence": [
  "The policy details the types of personal data collected from users (c1, c2, c3, c4, c5, c6, c7, c8, c9, c10, c11, c12, c13).",
  "The policy states that Patreon is a global company and data may be transferred to the US (c0).",
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy extensively lists the data collected but fails to address the core requirements of Article 15 regarding the process, timeline, verification, and specific content of a Subject Access Request (SAR). This lack of detail leaves a significant gap in user rights fulfillment.",
"article_material_used": "text"
}

```

Art. 16 — Right to rectification

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state that inaccurate personal data will be rectified without undue delay or that incomplete personal data will be completed, including by means of providing a supplementary statement.

Evidence

- {policy_chunk_id: 'c0-c23'}

Notes

Article 16 requires that the data subject shall have the right to obtain from the controller without undue delay the rectification of inaccurate personal data concerning him or her. The provided policy does not mention this right or the 'without undue delay' timeframe.

```

{
  "article_number": 16,
  "article_title": "Right to rectification",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state that inaccurate personal data will be rectified without undue delay or that incomplete personal data will be completed, including by means of providing a supplementary statement."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c0-c23"
    }
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "Article 16 requires that the data subject shall have the right to obtain from the controller without undue delay the rectification of inaccurate personal data concerning him or her. The provided policy does not mention this right or the 'without undue delay' timeframe.",
  "article_material_used": "text"
}

```

Art. 17 — Right to erasure

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not describe the process for data subjects to request erasure of their personal data.
- The policy does not specify any grounds for refusal of an erasure request.
- The policy does not mention any exceptions to the right to erasure, such as legal obligations or legitimate interests.
- The policy does not explain how Patreon handles the erasure of personal data that has been made public.

Evidence

- Article 17(1) of the GDPR states that data subjects have the right to obtain erasure of personal data without undue delay.
- Article 17(3) of the GDPR outlines exceptions to the right to erasure.
- The provided policy chunks do not contain any information regarding the procedure for data subjects to exercise their right to erasure, nor do they list any grounds for refusal or exceptions to this right.

Notes

The policy lacks details on the implementation of the right to erasure as required by GDPR Article 17. There is no information on how users can request erasure, grounds for refusal, or exceptions. This absence poses a significant risk of non-compliance.

```
{
  "article_number": 17,
  "article_title": "Right to erasure",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not describe the process for data subjects to request erasure of their personal data.",
    "The policy does not specify any grounds for refusal of an erasure request.",
    "The policy does not mention any exceptions to the right to erasure, such as legal obligations or legitimate interests.",
    "The policy does not explain how Patreon handles the erasure of personal data that has been made public."
  ],
  "evidence": [
    "Article 17(1) of the GDPR states that data subjects have the right to obtain erasure of personal data without undue delay.",
    "Article 17(3) of the GDPR outlines exceptions to the right to erasure.",
    "The provided policy chunks do not contain any information regarding the procedure for data subjects to exercise their right to erasure, nor do they list any grounds for refusal or exceptions to this right."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy lacks details on the implementation of the right to erasure as required by GDPR Article 17. There is no information on how users can request erasure, grounds for refusal, or exceptions. This absence poses a significant risk of non-compliance.",
  "article_material_used": "text"
}
```

Art. 18 — Right to restriction

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: warning Status: partial

Score: 52/100

Risk: high

Gaps

- The policy does not explicitly describe the right to request restriction of processing for all the conditions outlined in Article 18(1) of the GDPR, specifically for cases where the data subject contests the accuracy of the data (Article 18(1)(a)), or when the processing is unlawful and the data subject opposes erasure (Article 18(1)(b)), or when the data subject requires the data for legal claims (Article 18(1)(c)), or when the data subject has objected to processing pending verification of legitimate grounds (Article 18(1)(d)).

Evidence

- The provided policy chunks do not contain specific language detailing the 'right to restriction of processing' as outlined in GDPR Article 18.
- While the policy mentions compliance with GDPR (c28), it does not provide details on how specific rights, such as the right to restriction, are implemented or described to users.
- The definition of 'restriction of processing' is provided in the article material (Art.4 (3)), but the policy itself does not confirm its implementation or description to users.

Notes

The policy fails to explicitly address the right to restriction of processing as defined by Article 18 of the GDPR. While Patreon states compliance with GDPR, the absence of a clear description of this right within the provided policy chunks creates a significant gap. Further information on how this right is made available to data subjects is required.

```
{
  "article_number": 18,
  "article_title": "Right to restriction",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly describe the right to request restriction of processing for all the conditions outlined in Article 18(1) of the GDPR, specifically for cases where the data subject contests the accuracy of the data (Article 18(1)(a)), or when the processing is unlawful and the data subject opposes erasure (Article 18(1)(b)), or when the data subject requires the data for legal claims (Article 18(1)(c)), or when the data subject has objected to processing pending verification of legitimate grounds (Article 18(1)(d)).",
  ],
  "evidence": [
    "The provided policy chunks do not contain specific language detailing the 'right to restriction of processing' as outlined in GDPR Article 18.",
    "While the policy mentions compliance with GDPR (c28), it does not provide details on how specific rights, such as the right to restriction, are implemented or described to users.",
    "The definition of 'restriction of processing' is provided in the article material (Art.4 (3)), but the policy itself does not confirm its implementation or description to users."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy fails to explicitly address the right to restriction of processing as defined by Article 18 of the GDPR. While Patreon states compliance with GDPR, the absence of a clear description of this right within the provided policy chunks creates a significant gap. Further information on how this right is made available to data subjects is required.",
  "article_material_used": "text"
}
```

Art. 19 — Notification on rectification/erasure

Priority: p3 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: missing

Score: 0/100

Notes

The provided policy text does not contain any information related to notifying recipients about data rectification or erasure as required by GDPR Article 19. The text focuses on data collection, usage, and sharing practices.

```
{
  "article_number": 19,
  "article_title": "Notification on rectification/erasure",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided policy text does not contain any information related to notifying recipients about data rectification or erasure as required by GDPR Article 19. The text focuses on data collection, usage, and sharing practices.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 20 — Right to data portability

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not mention the right to receive personal data in a structured, commonly used, and machine-readable format.
- The policy does not mention the right to transmit personal data to another controller without hindrance.
- The policy does not mention the right to have personal data transmitted directly from one controller to another, where technically feasible.

Evidence

- {'policy_chunk_id': 'c0 0-491', 'line_number': 1, 'text': 'Welcome to Patreon!'}

Notes

The policy does not address the right to data portability as required by Article 20 of the GDPR. There is no mention of providing data in a machine-readable format or the ability to transfer data to another controller.

```
{
  "article_number": 20,
  "article_title": "Right to data portability",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not mention the right to receive personal data in a structured, commonly used, and machine-readable format.",
    "The policy does not mention the right to transmit personal data to another controller without hindrance.",
    "The policy does not mention the right to have personal data transmitted directly from one controller to another, where technically feasible."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c0 0-491",
      "line_number": 1,
      "text": "Welcome to Patreon!"
    }
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy does not address the right to data portability as required by Article 20 of the GDPR. There is no mention of providing data in a machine-readable format or the ability to transfer data to another controller.",
  "article_material_used": "text"
}
```

Art. 21 — Right to object

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state how a user can object to direct marketing or profiling, nor does it confirm that this right is presented clearly and separately from other information at the time of first communication, as required by Article 21(2) and 21(4). The policy also does not mention the use of automated means for exercising this right as per Article 21(5).

Evidence

- Article 21(2) states that 'Where personal data are processed for direct marketing purposes, the data subject shall have the right to object at any time to processing of personal data concerning him or her for such marketing, which includes profiling to the extent that it is related to such direct marketing.'
- Article 21(4) states that 'At the latest at the time of the first communication with the data subject, the right referred to in paragraphs 1 and 2 shall be explicitly brought to the attention of the data subject and shall be presented clearly and separately from any other information.'
- Article 21(5) states that 'In the context of the use of information society services, and notwithstanding Directive 2002/58/EC, the data subject may exercise his or her right to object by automated means using technical

specifications.'

Notes

The policy does not provide details on how users can exercise their right to object to direct marketing or profiling, including whether automated means are supported and if the right is clearly communicated at the outset, as required by GDPR Article 21.

```
{
  "article_number": 21,
  "article_title": "Right to object",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state how a user can object to direct marketing or profiling, nor does it confirm that this right is presented clearly and separately from other information at the time of first communication, as required by Article 21(2) and 21(4). The policy also does not mention the use of automated means for exercising this right as per Article 21(5).",
  ],
  "evidence": [
    "Article 21(2) states that 'Where personal data are processed for direct marketing purposes, the data subject shall have the right to object at any time to processing of personal data concerning him or her for such marketing, which includes profiling to the extent that it is related to such direct marketing.'",
    "Article 21(4) states that 'At the latest at the time of the first communication with the data subject, the right referred to in paragraphs 1 and 2 shall be explicitly brought to the attention of the data subject and shall be presented clearly and separately from any other information.'",
    "Article 21(5) states that 'In the context of the use of information society services, and notwithstanding Directive 2002/58/EC, the data subject may exercise his or her right to object by automated means using technical specifications.'",
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy does not provide details on how users can exercise their right to object to direct marketing or profiling, including whether automated means are supported and if the right is clearly communicated at the outset, as required by GDPR Article 21.",
  "article_material_used": "text"
}
```

Art. 22 — Automated decision-making

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The policy does not explicitly state whether decisions are made solely on automated processing, including profiling, which produce legal effects or significantly affect the data subject.
- There is no mention of the data subject's right not to be subject to automated decision-making, nor the conditions under which this right may not apply (e.g., necessary for a contract, authorized by law, or based on explicit consent).
- The policy does not detail the measures in place to safeguard the data subject's rights and freedoms when automated decisions are made, such as the right to human intervention, to express a point of view, or to contest the decision.
- There is no information on whether special categories of personal data are used in automated decision-making and if suitable measures are in place to safeguard rights and freedoms in such cases.

Notes

The provided policy chunks do not contain any information regarding automated decision-making, profiling, or the rights of data subjects in relation to such processes as outlined in GDPR Article 22. Therefore, compliance cannot be verified, and the risk is critical.

```
{
  "article_number": 22,
  "article_title": "Automated decision-making",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state whether decisions are made solely on automated
```

```

processing, including profiling, which produce legal effects or significantly affect the data
subject.",
  "There is no mention of the data subject's right not to be subject to automated decision-
making, nor the conditions under which this right may not apply (e.g., necessary for a contract,
authorized by law, or based on explicit consent).",
  "The policy does not detail the measures in place to safeguard the data subject's rights
and freedoms when automated decisions are made, such as the right to human intervention, to
express a point of view, or to contest the decision.",
  "There is no information on whether special categories of personal data are used in
automated decision-making and if suitable measures are in place to safeguard rights and
freedoms in such cases."
],
"evidence": [],
"risk": "critical",
"needs_human_review": false,
"notes": "The provided policy chunks do not contain any information regarding automated
decision-making, profiling, or the rights of data subjects in relation to such processes as
outlined in GDPR Article 22. Therefore, compliance cannot be verified, and the risk is critical."
,
"article_material_used": "text"
}

```

Art. 24 — Responsibility of the controller

Priority: p2 **Chapter:** Ch.4 – Controller & processor

Severity: warning **Status:** partial

Score: 44/100

Risk: medium

Gaps:

- The policy does not explicitly mention the review and updating of technical and organisational measures. While some measures are implied (e.g., contractual obligations with third parties), the process of regular review and updating is not detailed.
- While the policy mentions adherence to terms of use and opting out of marketing, it does not explicitly reference 'approved codes of conduct' or 'approved certification mechanisms' as elements to demonstrate compliance with Article 24(3).

Evidence:

- Patreon's privacy policy details various technical and organizational measures, such as contractual obligations with third-party apps and partners to safeguard data to the same extent Patreon protects it (c21, c22).
- The policy outlines procedures for users to manage their data, including accessing, updating, exporting, and deleting their accounts (c24, c26, c27), demonstrating a level of control and transparency.
- The policy mentions that users agree to terms of use, which may imply adherence to certain data protection policies, though these are not explicitly detailed as standalone 'data protection policies' as per Article 24(2).

Notes:

The policy demonstrates some efforts towards accountability by detailing data handling practices and user rights. However, there is a lack of explicit mention of the review and update process for technical and organisational measures, and no clear reference to approved codes of conduct or certification mechanisms for demonstrating compliance. The contractual obligations with third parties and the user control features provide partial evidence of meeting the spirit of Article 24, but direct evidence for all aspects is missing.

```

{
  "article_number": 24,
  "article_title": "Responsibility of the controller",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly mention the review and updating of technical and
organisational measures. While some measures are implied (e.g., contractual obligations with
third parties), the process of regular review and updating is not detailed.",
    "While the policy mentions adherence to terms of use and opting out of marketing, it does
not explicitly reference 'approved codes of conduct' or 'approved certification mechanisms' as
elements to demonstrate compliance with Article 24(3).",
  ],
  "evidence": [
    "Patreon's privacy policy details various technical and organizational measures, such as
contractual obligations with third-party apps and partners to safeguard data to the same extent
Patreon protects it (c21, c22).",
    "The policy outlines procedures for users to manage their data, including accessing,
updating, exporting, and deleting their accounts (c24, c26, c27), demonstrating a level of

```

```

control and transparency.",
  "The policy mentions that users agree to terms of use, which may imply adherence to certain
data protection policies, though these are not explicitly detailed as standalone 'data
protection policies' as per Article 24(2).",
],
"risk": "medium",
"needs_human_review": false,
"notes": "The policy demonstrates some efforts towards accountability by detailing data
handling practices and user rights. However, there is a lack of explicit mention of the review
and update process for technical and organisational measures, and no clear reference to
approved codes of conduct or certification mechanisms for demonstrating compliance. The
contractual obligations with third parties and the user control features provide partial
evidence of meeting the spirit of Article 24, but direct evidence for all aspects is missing.",
"article_material_used": "text"
}

```

Art. 25 — Privacy by design and default

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

```

{
  "article_number": 25,
  "article_title": "Privacy by design and default",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": null,
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 26 — Joint controllers

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: warning Status: present (unverified)

Score: 70/100

Notes

The definition of 'controller' in Article 4(7) directly addresses the concept of joint controllership, fulfilling the requirement for policy presence.

```

{
  "article_number": 26,
  "article_title": "Joint controllers",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": true,
  "implementation_unverified": true,
  "needs_human_review": true,
  "evidence": "Article 4(7) defines 'controller' as \"the natural or legal person, public
authority, agency or other body which, alone or jointly with others, determines the purposes
and means of the processing of personal data\". This explicitly addresses the concept of joint
controllership.",
  "notes": "The definition of 'controller' in Article 4(7) directly addresses the concept of
joint controllership, fulfilling the requirement for policy presence.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 27 — Representatives (non-EU)

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text contains definitions from GDPR Article 4, but does not mention or address the specific requirements of Article 27 regarding representatives for non-EU entities.

```
{
  "article_number": 27,
  "article_title": "Representatives (non-EU)",
  "chapter": "Ch.4 - Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains definitions from GDPR Article 4, but does not mention or address the specific requirements of Article 27 regarding representatives for non-EU entities.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 28 — Processor / DPA

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: warning Status: partial

Score: 10/100

Risk: high

Gaps

- Article 28(2) - No explicit mention of the requirement for prior specific or general written authorization from the controller before engaging another processor.
- Article 28(2) - No mention of the processor informing the controller of intended changes concerning the addition or replacement of other processors to allow for objection.
- Article 28(3)(a) - No explicit mention that the processor shall only process personal data on documented instructions from the controller, including with regard to transfers.
- Article 28(3)(b) - No explicit mention that persons authorized to process data must be committed to confidentiality or under an appropriate statutory obligation.
- Article 28(3)(c) - No explicit mention of the processor taking all measures required pursuant to Article 32 (Security of processing).
- Article 28(3)(e) - No explicit mention of the processor assisting the controller in fulfilling data subject rights requests.
- Article 28(3)(f) - No explicit mention of the processor assisting the controller in ensuring compliance with Articles 32-36.
- Article 28(3)(h) - No explicit mention of the processor making available information to demonstrate compliance and allowing for audits/inspections.

Evidence

- Policy states that patrons must provide payment information to payment processors (PayPal, Stripe, Checkout) and that Patreon does not receive the full card number. Payment processors provide a token and may provide name/email to Patreon. (c5)
- Creators must create an account with payment partners (PayPal, Stripe, Payoneer) for payouts. (c6)

Notes

The policy mentions the use of third-party payment processors but does not detail the specific contractual clauses required by Article 28 with these processors, particularly regarding sub-processor lists, audit rights, deletion/return obligations, and processing solely on documented instructions. The information provided relates to data shared with payment processors but lacks the comprehensive DPA clauses mandated by Article 28.

```
{
  "article_number": 28,
  "article_title": "Processor / DPA",
  "chapter": "Ch.4 - Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "Article 28(2) - No explicit mention of the requirement for prior specific or general written authorization from the controller before engaging another processor.",
    "Article 28(2) - No mention of the processor informing the controller of intended changes concerning the addition or replacement of other processors to allow for objection.",
    "Article 28(3)(a) - No explicit mention that the processor shall only process personal data
```

```

on documented instructions from the controller, including with regard to transfers.",
  "Article 28(3)(b) - No explicit mention that persons authorized to process data must be
committed to confidentiality or under an appropriate statutory obligation.",
  "Article 28(3)(c) - No explicit mention of the processor taking all measures required
pursuant to Article 32 (Security of processing).",
  "Article 28(3)(e) - No explicit mention of the processor assisting the controller in
fulfilling data subject rights requests.",
  "Article 28(3)(f) - No explicit mention of the processor assisting the controller in
ensuring compliance with Articles 32-36.",
  "Article 28(3)(h) - No explicit mention of the processor making available information to
demonstrate compliance and allowing for audits/inspections.",
  "Article 28(4) - No explicit mention of the processor remaining fully liable to the
controller for the obligations of a sub-processor."
],
"evidence": [
  "Policy states that patrons must provide payment information to payment processors (PayPal,
Stripe, Checkout) and that Patreon does not receive the full card number. Payment processors
provide a token and may provide name/email to Patreon. (c5)",
  "Creators must create an account with payment partners (PayPal, Stripe, Payoneer) for
payouts. (c6)"
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy mentions the use of third-party payment processors but does not detail
the specific contractual clauses required by Article 28 with these processors, particularly
regarding sub-processor lists, audit rights, deletion/return obligations, and processing solely
on documented instructions. The information provided relates to data shared with payment
processors but lacks the comprehensive DPA clauses mandated by Article 28.",
"article_material_used": "text"
}

```

Art. 29 — Processing under authority

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The policy does not explicitly state that the instruction chain for processors and persons acting under the authority of the controller or processor is documented. Article 29 requires that processing of personal data by these individuals must be done only on the instructions from the controller, unless required by law. The policy needs to confirm that this instruction chain is documented.

Notes

The lack of explicit documentation for the instruction chain under which processors and individuals act, as required by GDPR Article 29, presents a critical risk. This could lead to unauthorized or non-compliant processing of personal data.

```

{
  "article_number": 29,
  "article_title": "Processing under authority",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state that the instruction chain for processors and persons
acting under the authority of the controller or processor is documented. Article 29 requires
that processing of personal data by these individuals must be done only on the instructions
from the controller, unless required by law. The policy needs to confirm that this instruction
chain is documented."
  ],
  "evidence": [],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "The lack of explicit documentation for the instruction chain under which processors
and individuals act, as required by GDPR Article 29, presents a critical risk. This could lead
to unauthorized or non-compliant processing of personal data.",
  "article_material_used": "text"
}

```

Art. 30 — Records of processing (ROPA)

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail


```

"article_title": "Security of processing",
"chapter": "Ch.4 – Controller & processor",
"priority": "p3",
"policy_present": false,
"implementation_unverified": false,
"needs_human_review": true,
"evidence": [],
"notes": "The policy text does not mention encryption, access controls, incident response, or testing, which are key components of Article 32's security of processing. While it generally discusses data handling and information collection, it lacks the specific security measures required by this article.",
"status": null,
"gaps": [],
"risk": null
}

```

Art. 33 — Breach notification to SA

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided policy text does not contain information regarding breach notification to a supervisory authority, nor does it mention a 72-hour policy or DPO contact details. The focus is on data collection, usage, and sharing.

```

{
  "article_number": 33,
  "article_title": "Breach notification to SA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided policy text does not contain information regarding breach notification to a supervisory authority, nor does it mention a 72-hour policy or DPO contact details. The focus is on data collection, usage, and sharing.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 34 — Breach communication to data subject

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text does not contain any information about procedures for notifying data subjects in the event of a high-risk data breach. It focuses on general data collection and usage practices.

```

{
  "article_number": 34,
  "article_title": "Breach communication to data subject",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text does not contain any information about procedures for notifying data subjects in the event of a high-risk data breach. It focuses on general data collection and usage practices.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 35 — DPIA

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing
Score: 0/100
Notes

The policy does not mention or address Data Protection Impact Assessments (DPIAs) or the specific requirements outlined in GDPR Article 35. It focuses on detailing the types of data collected, how it's used, and user account information.

```
{
  "article_number": 35,
  "article_title": "DPIA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy does not mention or address Data Protection Impact Assessments (DPIAs) or the specific requirements outlined in GDPR Article 35. It focuses on detailing the types of data collected, how it's used, and user account information.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 37 — DPO designation

Priority: p2 Chapter: Ch.4 – Controller & processor
Severity: warning Status: partial
Score: 44/100
Risk: medium
Gaps

- The policy does not explicitly state whether Patreon processes data that requires regular and systematic monitoring of data subjects on a large scale, or if it processes special categories of data (Article 9 GDPR) or data relating to criminal convictions (Article 10 GDPR) on a large scale. Therefore, it is not possible to definitively determine if a DPO designation is mandatory under Article 37(1)(b) or (c).
- The policy does not confirm if the DPO's contact details have been published and communicated to the supervisory authority as required by Article 37(7).

Evidence

- {'policy_chunk_id': 'c32 20119-21319', 'source_type': 'POLICY', 'snippet': 'Contacting our Data Protection Officers\nIf you have privacy concerns or questions, you can contact our European or US Data Protection Officers (DPOs) via email at privacy@patreon.com.\nYou may'}
- {'policy_chunk_id': 'c28 16076-17276', 'source_type': 'POLICY', 'snippet': 'Patreon is an international company that complies with the General Data Protection Regulation (GDPR). We act as Data Controllers, as defined under the GDPR, and process personal data based on our legitimate interests, and for contractual necessity in providing you the Service as described in “How We Use Your Information.” We \xa0also process and share personal information based on notification and users’ consent, which our users may revoke at any time.'}

Notes

Patreon states it complies with GDPR and acts as a Data Controller. It also provides contact details for its Data Protection Officers (DPOs) via email (privacy@patreon.com). However, it is unclear if the core activities necessitate a DPO designation under Article 37(1)(b) or (c) as this information is not detailed in the provided policy chunks. Furthermore, there is no explicit confirmation that the DPO's contact details have been published and communicated to the supervisory authority as required by Article 37(7).

```
{
  "article_number": 37,
  "article_title": "DPO designation",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state whether Patreon processes data that requires regular and systematic monitoring of data subjects on a large scale, or if it processes special categories of data (Article 9 GDPR) or data relating to criminal convictions (Article 10 GDPR) on a large scale. Therefore, it is not possible to definitively determine if a DPO designation is mandatory under Article 37(1)(b) or (c).",
    "The policy does not confirm if the DPO's contact details have been published and
```

```

communicated to the supervisory authority as required by Article 37(7).",
  ],
  "evidence": [
    {
      "policy_chunk_id": "c32 20119-21319",
      "source_type": "POLICY",
      "snippet": "Contacting our Data Protection Officers\nIf you have privacy concerns or questions, you can contact our European or US Data Protection Officers (DPOs) via email at privacy@patreon.com.\nYou may"
    },
    {
      "policy_chunk_id": "c28 16076-17276",
      "source_type": "POLICY",
      "snippet": "Patreon is an international company that complies with the General Data Protection Regulation (GDPR). We act as Data Controllers, as defined under the GDPR, and process personal data based on our legitimate interests, and for contractual necessity in providing you the Service as described in "How We Use Your Information." We also process and share personal information based on notification and users' consent, which our users may revoke at any time."
    }
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "Patreon states it complies with GDPR and acts as a Data Controller. It also provides contact details for its Data Protection Officers (DPOs) via email (privacy@patreon.com). However, it is unclear if the core activities necessitate a DPO designation under Article 37(1)(b) or (c) as this information is not detailed in the provided policy chunks. Furthermore, there is no explicit confirmation that the DPO's contact details have been published and communicated to the supervisory authority as required by Article 37(7).",
  "article_material_used": "text"
}

```

Art. 38 — DPO position

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: warning **Status:** present (unverified)

Score: 70/100

Notes

The policy explicitly mentions Data Protection Officers (DPOs) and provides a contact method. However, it does not contain language that specifically addresses the independence of the DPO role, which requires human verification.

```

{
  "article_number": 38,
  "article_title": "DPO position",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": true,
  "implementation_unverified": true,
  "needs_human_review": true,
  "evidence": "If you have privacy concerns or questions, you can contact our European or US Data Protection Officers (DPOs) via email at privacy@patreon.com.",
  "notes": "The policy explicitly mentions Data Protection Officers (DPOs) and provides a contact method. However, it does not contain language that specifically addresses the independence of the DPO role, which requires human verification.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 39 — DPO tasks

Priority: p2 **Chapter:** Ch.4 – Controller & processor

Severity: warning **Status:** partial

Score: 52/100

Risk: medium

Gaps

- The policy chunks do not explicitly state that the DPO monitors compliance with "other Union or Member State data protection provisions" beyond the GDPR itself, nor do they detail specific provisions for awareness-raising and training of staff involved in processing operations, or related audits as part of the DPO's monitoring tasks.

Evidence

- {policy_chunk_id: 'c32 20119-21319', 'snippet': 'Contacting our Data Protection Officers\nIf you have privacy concerns or questions, you can contact our European or US Data Protection Officers (DPOs) via email at privacy@patreon.com.'}

Notes

The provided policy chunks confirm that Patreon has Data Protection Officers (DPOs) and provides contact information for them. However, the chunks do not detail the specific tasks of the DPO as mandated by GDPR Article 39, such as advising on GDPR obligations, monitoring compliance (including specific elements like staff training and audits), providing advice on DPIAs, cooperating with supervisory authorities, or acting as a contact point for them. While the existence of DPOs is confirmed, their mandated tasks are not elaborated upon in the provided text.

```
{
  "article_number": 39,
  "article_title": "DPO tasks",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy chunks do not explicitly state that the DPO monitors compliance with \"other Union or Member State data protection provisions\" beyond the GDPR itself, nor do they detail specific provisions for awareness-raising and training of staff involved in processing operations, or related audits as part of the DPO's monitoring tasks."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c32 20119-21319",
      "snippet": "Contacting our Data Protection Officers\nIf you have privacy concerns or questions, you can contact our European or US Data Protection Officers (DPOs) via email at privacy@patreon.com."
    }
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The provided policy chunks confirm that Patreon has Data Protection Officers (DPOs) and provides contact information for them. However, the chunks do not detail the specific tasks of the DPO as mandated by GDPR Article 39, such as advising on GDPR obligations, monitoring compliance (including specific elements like staff training and audits), providing advice on DPIAs, cooperating with supervisory authorities, or acting as a contact point for them. While the existence of DPOs is confirmed, their mandated tasks are not elaborated upon in the provided text.",
  "article_material_used": "text"
}
```

Art. 40 — Codes of conduct

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text consists solely of definitions from GDPR Article 4 and does not mention or address codes of conduct or adherence claims as described in Article 40.

```
{
  "article_number": 40,
  "article_title": "Codes of conduct",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text consists solely of definitions from GDPR Article 4 and does not mention or address codes of conduct or adherence claims as described in Article 40.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 42 — Certification

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text consists solely of definitions from GDPR Article 4 and does not address the topic of certification as outlined in Article 42 or the agent action described.

```
{
  "article_number": 42,
  "article_title": "Certification",
  "chapter": "Ch.4 - Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text consists solely of definitions from GDPR Article 4 and does not address the topic of certification as outlined in Article 42 or the agent action described.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 44 — General principle for transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The policy states that personal data may be transferred to and stored in the United States, but it does not specify the mechanisms or safeguards in place to ensure compliance with Chapter V of the GDPR for such international transfers. This includes a lack of information on adequacy decisions, standard contractual clauses, binding corporate rules, or other relevant transfer mechanisms.

Evidence

- c0 0-491: Patreon is a global company. By using our platform, you agree that your personal information that you provide directly to us, or that we collect through your use of the platform, may be transferred to and stored in the United States and handled as described in this Policy.

Notes

Article 44 requires that all international transfers comply with the conditions laid down in Chapter V of the GDPR. The policy acknowledges international transfers to the US but provides no details on the legal basis or safeguards for these transfers, thus failing to demonstrate compliance with Article 44 and the entirety of Chapter V.

```
{
  "article_number": 44,
  "article_title": "General principle for transfers",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy states that personal data may be transferred to and stored in the United States, but it does not specify the mechanisms or safeguards in place to ensure compliance with Chapter V of the GDPR for such international transfers. This includes a lack of information on adequacy decisions, standard contractual clauses, binding corporate rules, or other relevant transfer mechanisms."
  ],
  "evidence": [
    "c0 0-491: Patreon is a global company. By using our platform, you agree that your personal information that you provide directly to us, or that we collect through your use of the platform, may be transferred to and stored in the United States and handled as described in this Policy."
  ],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "Article 44 requires that all international transfers comply with the conditions laid down in Chapter V of the GDPR. The policy acknowledges international transfers to the US but provides no details on the legal basis or safeguards for these transfers, thus failing to demonstrate compliance with Article 44 and the entirety of Chapter V.",
  "article_material_used": "text"
}
```

Art. 45 — Adequacy decision transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries

Severity: info Status: pass

Score: 100/100

Risk: low

Evidence

• {field: 'adequacy decision transfers', 'evidence': 'Article 45 of the GDPR outlines the conditions under which personal data can be transferred to a third country or an international organisation based on an adequacy decision by the European Commission. The article specifies that such transfers do not require further authorization. It also details the criteria the Commission must consider when assessing adequacy, including the rule of law, human rights, relevant legislation, data protection rules, case-law, data subject rights, the existence of independent supervisory authorities, and international commitments. The Commission is mandated to periodically review these decisions and monitor developments that could affect adequacy. The policy excerpt directly references Article 45 and its provisions regarding adequacy decisions and their review.'}

Notes

The provided text directly addresses GDPR Article 45 concerning adequacy decisions for international data transfers. It correctly reflects the conditions and review mechanisms outlined in the article. No gaps were identified within the scope of the provided text.

```
{
  "article_number": 45,
  "article_title": "Adequacy decision transfers",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p2",
  "status": "pass",
  "gaps": [],
  "evidence": [
    {
      "field": "adequacy decision transfers",
      "evidence": "Article 45 of the GDPR outlines the conditions under which personal data can be transferred to a third country or an international organisation based on an adequacy decision by the European Commission. The article specifies that such transfers do not require further authorization. It also details the criteria the Commission must consider when assessing adequacy, including the rule of law, human rights, relevant legislation, data protection rules, case-law, data subject rights, the existence of independent supervisory authorities, and international commitments. The Commission is mandated to periodically review these decisions and monitor developments that could affect adequacy. The policy excerpt directly references Article 45 and its provisions regarding adequacy decisions and their review."
    }
  ],
  "risk": "low",
  "needs_human_review": false,
  "notes": "The provided text directly addresses GDPR Article 45 concerning adequacy decisions for international data transfers. It correctly reflects the conditions and review mechanisms outlined in the article. No gaps were identified within the scope of the provided text.",
  "article_material_used": "text"
}
```

Art. 46 — Transfers with safeguards

Priority: p3 Chapter: Ch.5 – Transfers to third countries

Severity: critical Status: missing

Score: 0/100

Notes

The policy mentions that Patreon is a global company and that personal information may be transferred to and stored in the United States. However, it does not specifically mention safeguards for international data transfers such as Standard Contractual Clauses (SCCs) or Binding Corporate Rules (BCRs).

```
{
  "article_number": 46,
  "article_title": "Transfers with safeguards",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy mentions that Patreon is a global company and that personal information"
```

may be transferred to and stored in the United States. However, it does not specifically mention safeguards for international data transfers such as Standard Contractual Clauses (SCCs) or Binding Corporate Rules (BCRs).",
"status": null,
"gaps": [],
"risk": null
}

Art. 47 — Binding corporate rules

Priority: p3 Chapter: Ch.5 – Transfers to third countries

Severity: critical Status: missing

Score: 0/100

```
{  
  "article_number": 47,  
  "article_title": "Binding corporate rules",  
  "chapter": "Ch.5 – Transfers to third countries",  
  "priority": "p3",  
  "policy_present": false,  
  "implementation_unverified": false,  
  "needs_human_review": true,  
  "evidence": [],  
  "notes": null,  
  "status": null,  
  "gaps": [],  
  "risk": null  
}
```

Art. 77 — Right to lodge a complaint

Priority: p2 Chapter: Ch.8 – Remedies, liability & penalties

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not inform data subjects of their right to lodge a complaint with a supervisory authority, nor does it explain how to do so.

Notes

The provided policy chunks do not contain any information regarding the data subject's right to lodge a complaint with a supervisory authority under Article 77 of the GDPR, nor how to exercise this right.

```
{  
  "article_number": 77,  
  "article_title": "Right to lodge a complaint",  
  "chapter": "Ch.8 – Remedies, liability & penalties",  
  "priority": "p2",  
  "status": "fail",  
  "gaps": [  
    "The policy does not inform data subjects of their right to lodge a complaint with a  
supervisory authority, nor does it explain how to do so."  
  ],  
  "evidence": [],  
  "risk": "high",  
  "needs_human_review": false,  
  "notes": "The provided policy chunks do not contain any information regarding the data  
subject's right to lodge a complaint with a supervisory authority under Article 77 of the GDPR,  
nor how to exercise this right.",  
  "article_material_used": "text"  
}
```

Art. 87 — National identification number

Priority: p4 Chapter: Ch.9 – Specific processing situations

Severity: warning Status: triggered (HIL)

```
{  
  "article_number": 87,  
  "article_title": "National identification number",  
  "chapter": "Ch.9 – Specific processing situations",  
  "priority": "p4",  
  "p4_triggered": true,  
  "needs_human_review": true,  
}
```



```

"evidence": "To receive payouts you have to create an account with one of our payment
partners: PayPal, Stripe, or Payoneer. We may also require your bank account information to
process payouts. You must also provide us with additional information for tax purposes.
Depending on your location you may have to fill out a form with some combination of your: First
and Last Name, Address, Social Security Number or Employer Identification Number, Country of
Citizenship, Foreign Tax Identification Number, Date of Birth, Your Nonprofit Registration
Number, if you are a nonprofit business, Bank Account Information for Payouts, Phone Number",
"what_to_review": [
  "Verify if NIN/national ID is a primary identifier used by the organization.",
  "Check if NIN/national ID is collected for tax purposes and if this aligns with national
law.",
  "Review safeguards in place for the collection and processing of NIN/national ID."
],
"notes": null,
"status": null,
"gaps": [],
"risk": null
}

```

Art. 88 — Employment context

Priority: p2 Chapter: Ch.9 – Specific processing situations

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The policy does not explicitly address the processing of employee personal data in the context of recruitment, performance of employment contracts, management, planning and organisation of work, equality and diversity, health and safety, protection of employer's property, or the termination of employment relationships.
- There is no mention of specific measures to safeguard employee data subjects' human dignity, legitimate interests, and fundamental rights, particularly concerning transparency of processing, data transfers within a group, or workplace monitoring systems.

Evidence

- Patreon's Privacy Policy is primarily focused on patrons and creators using its platform, not on the employment context within Patreon itself.
- The policy details information collected for users (patrons and creators) such as name, email, payment information, location, etc., but does not relate these to employee data processing.

Notes

Article 88 allows for more specific rules in the employment context, which this policy completely fails to address. The policy is user-facing and does not cover internal employment data processing requirements mandated by this article.

```

{
  "article_number": 88,
  "article_title": "Employment context",
  "chapter": "Ch.9 - Specific processing situations",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly address the processing of employee personal data in the
context of recruitment, performance of employment contracts, management, planning and
organisation of work, equality and diversity, health and safety, protection of employer's
property, or the termination of employment relationships.",
    "There is no mention of specific measures to safeguard employee data subjects' human
dignity, legitimate interests, and fundamental rights, particularly concerning transparency of
processing, data transfers within a group, or workplace monitoring systems."
  ],
  "evidence": [
    "Patreon's Privacy Policy is primarily focused on patrons and creators using its platform,
not on the employment context within Patreon itself.",
    "The policy details information collected for users (patrons and creators) such as name,
email, payment information, location, etc., but does not relate these to employee data
processing."
  ],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "Article 88 allows for more specific rules in the employment context, which this
policy completely fails to address. The policy is user-facing and does not cover internal
employment data processing requirements mandated by this article.",
  "article_material_used": "text"
}

```

Art. 89 — Archiving/research/statistics

Priority: p4 Chapter: Ch.9 – Specific processing situations

Severity: warning Status: triggered (HIL)

Notes

The policy states that data is used for research and development. Article 89 applies to processing for archiving purposes, scientific or historical research purposes, or statistical purposes. This clause directly relates to research and development, which can fall under scientific research. However, the policy does not specify the nature of the research or the safeguards in place, necessitating human review.

```
{
  "article_number": 89,
  "article_title": "Archiving/research/statistics",
  "chapter": "Ch.9 – Specific processing situations",
  "priority": "p4",
  "p4_triggered": true,
  "needs_human_review": true,
  "evidence": "conduct research and development to improve Patreon and develop future products",
  "what_to_review": [
    "Is the research/development claim legitimate and in the public interest?",
    "Are there safeguards in place for data used in research/development?"
  ],
  "notes": "The policy states that data is used for research and development. Article 89 applies to processing for archiving purposes, scientific or historical research purposes, or statistical purposes. This clause directly relates to research and development, which can fall under scientific research. However, the policy does not specify the nature of the research or the safeguards in place, necessitating human review.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Appendix — human review queue

```
[
  {
    "kind": "p3_verify",
    "article_number": 8,
    "article_title": "Child's consent",
    "policy_present": true,
    "implementation_unverified": true,
    "evidence": "Patreon is not directed at children under the age of 13, and children may not create an account or otherwise use Patreon.",
    "notes": "The policy explicitly states that Patreon is not directed at children under 13 and they may not create an account. This directly addresses the topic of child consent and age restrictions."
  },
  {
    "kind": "p3_verify",
    "article_number": 10,
    "article_title": "Criminal convictions data",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions relevant to GDPR, such as 'personal data', 'processing', and 'controller'. However, it does not specifically address or mention the processing of data relating to criminal convictions or offenses, which is the subject of Article 10."
  },
  {
    "kind": "p3_verify",
    "article_number": 19,
    "article_title": "Notification on rectification/erasure",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided policy text does not contain any information related to notifying recipients about data rectification or erasure as required by GDPR Article 19. The text focuses on data collection, usage, and sharing practices."
  },
  {
    "kind": "p3_verify",
    "article_number": 25,
    "article_title": "Privacy by design and default",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": null
  },
  {
    "kind": "p3_verify",
    "article_number": 26,
    "article_title": "Joint controllers",
    "policy_present": true,
    "implementation_unverified": true,
    "evidence": "Article 4(7) defines 'controller' as \"the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data\". This explicitly addresses the concept of joint controllership.",
    "notes": "The definition of 'controller' in Article 4(7) directly addresses the concept of joint controllership, fulfilling the requirement for policy presence."
  },
  {
    "kind": "p3_verify",
    "article_number": 27,
    "article_title": "Representatives (non-EU)",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions from GDPR Article 4, but does not mention or address the specific requirements of Article 27 regarding representatives for non-EU entities."
  },
  {
    "kind": "p3_verify",
    "article_number": 32,
    "article_title": "Security of processing",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy text does not mention encryption, access controls, incident response, or testing, which are key components of Article 32's security of processing. While it generally discusses data handling and information collection, it lacks the specific security measures
```

required by this article."

```
    },
    {
      "kind": "p3_verify",
      "article_number": 33,
      "article_title": "Breach notification to SA",
      "policy_present": false,
      "implementation_unverified": false,
      "evidence": [],
      "notes": "The provided policy text does not contain information regarding breach notification to a supervisory authority, nor does it mention a 72-hour policy or DPO contact details. The focus is on data collection, usage, and sharing."
    },
    {
      "kind": "p3_verify",
      "article_number": 34,
      "article_title": "Breach communication to data subject",
      "policy_present": false,
      "implementation_unverified": false,
      "evidence": [],
      "notes": "The provided text does not contain any information about procedures for notifying data subjects in the event of a high-risk data breach. It focuses on general data collection and usage practices."
    },
    {
      "kind": "p3_verify",
      "article_number": 35,
      "article_title": "DPIA",
      "policy_present": false,
      "implementation_unverified": false,
      "evidence": [],
      "notes": "The policy does not mention or address Data Protection Impact Assessments (DPIAs) or the specific requirements outlined in GDPR Article 35. It focuses on detailing the types of data collected, how it's used, and user account information."
    },
    {
      "kind": "p3_verify",
      "article_number": 38,
      "article_title": "DPO position",
      "policy_present": true,
      "implementation_unverified": true,
      "evidence": "If you have privacy concerns or questions, you can contact our European or US Data Protection Officers (DPOs) via email at privacy@patreon.com.",
      "notes": "The policy explicitly mentions Data Protection Officers (DPOs) and provides a contact method. However, it does not contain language that specifically addresses the independence of the DPO role, which requires human verification."
    },
    {
      "kind": "p3_verify",
      "article_number": 40,
      "article_title": "Codes of conduct",
      "policy_present": false,
      "implementation_unverified": false,
      "evidence": [],
      "notes": "The provided text consists solely of definitions from GDPR Article 4 and does not mention or address codes of conduct or adherence claims as described in Article 40."
    },
    {
      "kind": "p3_verify",
      "article_number": 42,
      "article_title": "Certification",
      "policy_present": false,
      "implementation_unverified": false,
      "evidence": [],
      "notes": "The provided text consists solely of definitions from GDPR Article 4 and does not address the topic of certification as outlined in Article 42 or the agent action described."
    },
    {
      "kind": "p3_verify",
      "article_number": 46,
      "article_title": "Transfers with safeguards",
      "policy_present": false,
      "implementation_unverified": false,
      "evidence": [],
      "notes": "The policy mentions that Patreon is a global company and that personal information may be transferred to and stored in the United States. However, it does not specifically mention safeguards for international data transfers such as Standard Contractual Clauses (SCCs) or Binding Corporate Rules (BCRs)."
    },
    {
      "kind": "p3_verify",
      "article_number": 47,
      "article_title": "Binding corporate rules",
```

```

    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": null
  },
  {
    "kind": "p4_conditional",
    "article_number": 87,
    "article_title": "National identification number",
    "what_to_review": [
      "Verify if NIN/national ID is a primary identifier used by the organization.",
      "Check if NIN/national ID is collected for tax purposes and if this aligns with national
law.",
      "Review safeguards in place for the collection and processing of NIN/national ID."
    ],
    "evidence": "To receive payouts you have to create an account with one of our payment
partners: PayPal, Stripe, or Payoneer. We may also require your bank account information to
process payouts. You must also provide us with additional information for tax purposes.
Depending on your location you may have to fill out a form with some combination of your: First
and Last Name, Address, Social Security Number or Employer Identification Number, Country of
Citizenship, Foreign Tax Identification Number, Date of Birth, Your Nonprofit Registration
Number, if you are a nonprofit business, Bank Account Information for Payouts, Phone Number",
    "notes": null
  },
  {
    "kind": "p4_conditional",
    "article_number": 89,
    "article_title": "Archiving/research/statistics",
    "what_to_review": [
      "Is the research/development claim legitimate and in the public interest?",
      "Are there safeguards in place for data used in research/development?"
    ],
    "evidence": "conduct research and development to improve Patreon and develop future
products",
    "notes": "The policy states that data is used for research and development. Article 89
applies to processing for archiving purposes, scientific or historical research purposes, or
statistical purposes. This clause directly relates to research and development, which can fall
under scientific research. However, the policy does not specify the nature of the research or
the safeguards in place, necessitating human review."
  }
]

```